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Plaintiff, In Pro Per

**SUPERIOR COURT OF THE STATE OF CALIFORNIA
COUNTY OF SAN FRANCISCO**

Franciscus Dylan Rosario,
PLAINTIFF,

v.

Subhi Abdelhalim;
CSAA Insurance Exchange;
PHILLIPS, SPALLAS & ANGSTADT LLP;
PRIYA D. NAVARATNASINGHAM;
ALBERTO REYNA;
MICHAEL R. CHAMBERS;
CARBONE, SMITH & KOYAMA;
and DOES 1 through 50, inclusive;

DEFENDANTS

Case No.: CGC-25-631801

**PLAINTIFF'S COMBINED
OBJECTION TO RFJN AND
EVIDENTIARY OBJECTIONS TO
DECLARATIONS**

Date:
Time:
Dept.:
Judge:
Reservation No.:

May 12, 2026
9:00 a.m.
301

I. INTRODUCTION

Plaintiff objects to Defendants' Requests for Judicial Notice filed in support of the Demurrer (Clerk File No. 10157173) and the Special Motion to Strike (Clerk File No. 10152302). Defendants improperly seek judicial notice of documents for the truth of disputed facts, exceeding the permissible scope of judicial notice on demurrer and conflating document existence with factual truth. Judicial notice cannot establish the truth of disputed factual inferences central to extrinsic fraud, the Anti-SLAPP prong-one gravamen analysis, or the prong-two merits inquiry. Those issues turn on contested facts that cannot be resolved by noticing the existence of a court file.

II. LEGAL STANDARD

A. Scope of Judicial Notice

Evidence Code section 452 permits judicial notice of certain categories of facts and documents, including court records under section 452(d) and facts not reasonably subject to dispute under section 452(h).

B. Limits on Demurrer

Under Code of Civil Procedure section 430.70, on demurrer the Court considers the complaint and matters subject to judicial notice. However, judicial notice of a document's existence does not extend to the truth of hearsay statements or disputed facts within that document.

“While courts are free to take judicial notice of the existence of each document in a court file, including the truth of results reached, they may not take judicial notice of the truth of hearsay statements in decisions and court files.” (Arce v. Kaiser Found. Health Plan, Inc. (2010) 181 Cal.App.4th 471, 482-483.)

Accord *Sosinsky v. Grant* (1992) 6 Cal.App.4th 1548, 1564-1565 (a court cannot, by taking judicial notice of a document, accept the truth of factual assertions appearing in it, because those assertions are hearsay); *Unruh-Haxton v. Regents of Univ. of California* (2008) 162 Cal.App.4th 343, 364-365 (judicial notice of court records is limited to the existence of the records and the legal effect of rulings; it does not extend to the truth of factual matters asserted in those records); *People*

1 v. Woodell (1998) 17 Cal.4th 448, 459 (the court may take judicial notice of the existence and the
2 orders and findings of a prior proceeding, but not of the truth of factual recitations or testimony
3 contained in the record).

4 **C. The Facial Test Rule**

5 On demurrer, the Court tests the sufficiency of the complaint on its face, accepting well-pleaded
6 facts as true. Defendants cannot use judicial notice to insert merits evidence or factual disputes
7 into the demurrer record.

9 **III. OBJECTIONS TO DEMURRER REJN (CLERK FILE NO. 10157173)**

10 Exhibits A-T are attached to the Declaration of Tyler J. O’Connell in support of Defendants’ De-
11 murrer. Unless otherwise noted, each exhibit is from Rosario v. Abdelhalim, San Francisco County
12 Superior Court Case No. CGC-21-594102.

13 **(a) Exhibit A — Plaintiff’s First Amended Complaint (instant action, CGC-25-631801)**

- 14 • **What defense uses it to prove:** That FAC allegations are “conclusory” or internally contra-
15 dicted
- 16 • **Objection:** NO OBJECTION to existence; OBJECT to use as extrinsic evidence contradict-
17 ing well-pleaded allegations
- 18 • **Grounds:** The FAC is already before the Court on demurrer; judicial notice is superfluous
19 and cannot be used to recharacterize its allegations.

20 **(b) Exhibit B — Plaintiff’s Complaint in related action (Rosario v. CSAA, CGC-25-631802)**

- 21 • **What defense uses it to prove:** That the instant FAC is duplicative or claim-split
- 22 • **Objection:** OBJECT to improper use
- 23 • **Grounds:** Existence may be noticed; object to use for truth of characterizations or to resolve
24 disputed claim-splitting questions on demurrer.

25 **(c) Exhibit C — Register of Actions, CGC-21-594102**

- 26 • **What defense uses it to prove:** That “all issues” were litigated below
- 27 • **Objection:** OBJECT to improper use
- 28 • **Grounds:** Existence only; object to use as proof that extrinsic fraud issues were adjudicated.

Docket entries do not establish the substantive scope of what was decided.

(d) Exhibit D — Defendant’s Substitution of Defense Counsel (CGC-21-594102)

- **What defense uses it to prove:** That the file transfer was adequate / no fraud in transition
- **Objection:** OBJECT
- **Grounds:** Arce/Sosinsky: no judicial notice of truth of recitals. The substitution form does not prove the adequacy or completeness of the underlying file transfer — the central disputed fact.

(e) Exhibit E — Defendant’s Motion in Limine #6 (CGC-21-594102)

- **What defense uses it to prove:** That disputed evidence was “presented” and ruled upon
- **Objection:** OBJECT
- **Grounds:** Existence only; object to use for truth of characterizations of the record. Motion papers are hearsay as to their factual assertions (Sosinsky).

(f) Exhibit F — Defendant’s Motion in Limine #8 (CGC-21-594102)

- **What defense uses it to prove:** Same — that issues were adjudicated below
- **Objection:** OBJECT
- **Grounds:** Same grounds as Exhibit E.

(g) Exhibit G — Defendant’s Motion in Limine #17 (CGC-21-594102)

- **What defense uses it to prove:** Same — that issues were adjudicated below
- **Objection:** OBJECT
- **Grounds:** Same grounds as Exhibit E.

(h) Exhibit H — Order re Trial Scheduling and Motions in Limine (CGC-21-594102)

- **What defense uses it to prove:** That MIL rulings foreclose the present claims
- **Objection:** OBJECT to improper use
- **Grounds:** Existence and legal effect only (Unruh-Haxton); object to use for truth of factual recitals or to imply preclusion of extrinsic fraud claims not before that court.

(i) Exhibit I — Plaintiff’s Motion for Judgment Notwithstanding the Verdict (CGC-21-594102)

- **What defense uses it to prove:** That Plaintiff previously raised and lost these issues

1 • **Objection:** OBJECT

2 • **Grounds:** Existence only; object to use for truth of characterizations. JNOV papers addressed
3 sufficiency of evidence, not extrinsic fraud in procurement.

4 (j) **Exhibit J — Plaintiff’s Declaration ISO JNOV (CGC-21-594102)**

5 • **What defense uses it to prove:** Same as Exhibit I

6 • **Objection:** OBJECT

7 • **Grounds:** Hearsay within a court file (Arce, 181 Cal.App.4th at 482-483); no notice of truth.

8 (k) **Exhibit K — Defendant’s Opposition to Plaintiff’s JNOV (CGC-21-594102)**

9 • **What defense uses it to prove:** Same

10 • **Objection:** OBJECT

11 • **Grounds:** Hearsay; adversarial characterizations not subject to judicial notice for truth.

12 (l) **Exhibit L — Plaintiff’s Motion for New Trial (CGC-21-594102)**

13 • **What defense uses it to prove:** That Plaintiff previously raised fraud-adjacent issues

14 • **Objection:** OBJECT

15 • **Grounds:** Existence only; object to use for truth. The new-trial motion is not co-extensive
16 with an independent extrinsic-fraud action.

17 (m) **Exhibit M — Defendant’s Opposition to Motion for New Trial/Mistrial (CGC-21-594102)**

18 • **What defense uses it to prove:** Same

19 • **Objection:** OBJECT

20 • **Grounds:** Hearsay; Sosinsky.

21 (n) **Exhibit N — Order on Plaintiff’s Post-Trial Motions (CGC-21-594102)**

22 • **What defense uses it to prove:** That FAC claims lack merit / are precluded

23 • **Objection:** OBJECT to improper use

24 • **Grounds:** Existence and legal effect only (Woodell); object to use as proof that extrinsic
25 fraud allegations were adjudicated.

26 (o) **Exhibit O — Plaintiff’s “Prayer” to Judge East re Disqualification of Judge Wong**
27 **(CGC-21-594102)**

28 • **What defense uses it to prove:** That Plaintiff’s concerns were previously heard and rejected

- 1 • **Objection:** OBJECT
- 2 • **Grounds:** Existence only; object to use for truth.
- 3 (p) **Exhibit P — Order Denying Plaintiff’s “Prayer” and § 170.6 (CGC-21-594102)**
- 4 • **What defense uses it to prove:** Same — preclusion by prior denial
- 5 • **Objection:** OBJECT to improper use
- 6 • **Grounds:** Existence and legal effect only; does not adjudicate extrinsic fraud.
- 7 (q) **Exhibit Q — Plaintiff’s Notice of Appeal (CGC-21-594102)**
- 8 • **What defense uses it to prove:** Exclusive appellate jurisdiction / stay
- 9 • **Objection:** OBJECT on relevance
- 10 • **Grounds:** Pendency of appeal does not deprive this Court of jurisdiction over an independent
- 11 equitable action for extrinsic fraud.
- 12 (r) **Exhibit R — Plaintiff’s Notice Designating Record on Appeal (CGC-21-594102)**
- 13 • **What defense uses it to prove:** Same
- 14 • **Objection:** OBJECT on relevance
- 15 • **Grounds:** Same grounds as Q.
- 16 (s) **Exhibit S — Defendant’s Notice of Entry of Judgment (CGC-21-594102)**
- 17 • **What defense uses it to prove:** That a facially valid judgment bars this action
- 18 • **Objection:** OBJECT to improper use
- 19 • **Grounds:** Existence only; facial validity does not preclude an extrinsic-fraud attack.
- 20 (t) **Exhibit T — Plaintiff’s Original Complaint in related action (CGC-25-631802)**
- 21 • **What defense uses it to prove:** Claim-splitting / duplication
- 22 • **Objection:** OBJECT to improper use
- 23 • **Grounds:** Same grounds as Exhibit B.

25 **IV. OBJECTIONS TO ANTI-SLAPP RFJN (CLERK FILE NO. 10152302)**

26 The Anti-SLAPP RFJN requests notice of the same Exhibits A-T attached to the Declaration of
27 Tyler J. O’Connell (filed in support of the Special Motion to Strike). Objections below are addi-
28 tional to, and cumulative with, the objections stated in Section III.

1 (a) **Exhibit A — Plaintiff’s FAC (CGC-25-631801)**

- 2 • **What defense uses it to prove:** That FAC “arises from” protected activity (prong one)
- 3 • **Objection:** OBJECT to improper use
- 4 • **Grounds:** The FAC is already before the Court; judicial notice is superfluous and cannot
- 5 substitute for prong-one gravamen analysis.

6 (b) **Exhibit B — Plaintiff’s Complaint in related action (CGC-25-631802)**

- 7 • **What defense uses it to prove:** Prong-two “lacks minimal merit”
- 8 • **Objection:** OBJECT
- 9 • **Grounds:** Merits inference at step one; improper. Step two cannot be collapsed into judicial
- 10 notice of a separate pleading.

11 (c) **Exhibit C — Register of Actions (CGC-21-594102)**

- 12 • **What defense uses it to prove:** That all issues were previously litigated (prong two)
- 13 • **Objection:** OBJECT
- 14 • **Grounds:** Docket entries cannot establish the substantive scope of adjudication.

15 (d) **Exhibit D — Substitution of Defense Counsel (CGC-21-594102)**

- 16 • **What defense uses it to prove:** That the file transfer was adequate (prong-two merits)
- 17 • **Objection:** OBJECT
- 18 • **Grounds:** Central disputed fact; cannot be resolved by judicial notice (Sosinsky; Unruh-
- 19 Haxton).

20 (e) **Exhibit E — MIL #6 (CGC-21-594102)**

- 21 • **What defense uses it to prove:** That disputed evidence was “presented to the jury”
- 22 • **Objection:** OBJECT
- 23 • **Grounds:** Merits inference; improper at prong one; hearsay as to truth.

24 (f) **Exhibit F — MIL #8 (CGC-21-594102)**

- 25 • **What defense uses it to prove:** Same
- 26 • **Objection:** OBJECT
- 27 • **Grounds:** Same grounds as E.

28 (g) **Exhibit G — MIL #17 (CGC-21-594102)**

1 • **What defense uses it to prove:** Same

2 • **Objection:** OBJECT

3 • **Grounds:** Same grounds as E.

4 (h) **Exhibit H — Order re Trial Scheduling and MILs (CGC-21-594102)**

5 • **What defense uses it to prove:** That MIL rulings foreclose prong-two merits

6 • **Objection:** OBJECT to improper use

7 • **Grounds:** Existence/legal effect only; no notice of factual recitals.

8 (i) **Exhibit I — Plaintiff's JNOV (CGC-21-594102)**

9 • **What defense uses it to prove:** That Plaintiff previously raised these issues

10 • **Objection:** OBJECT

11 • **Grounds:** Hearsay; Arce; no preclusion as to extrinsic fraud.

12 (j) **Exhibit J — Plaintiff's Decl. ISO JNOV (CGC-21-594102)**

13 • **What defense uses it to prove:** Same

14 • **Objection:** OBJECT

15 • **Grounds:** Hearsay in court file; Arce.

16 (k) **Exhibit K — Defendant's Opposition to JNOV (CGC-21-594102)**

17 • **What defense uses it to prove:** Same

18 • **Objection:** OBJECT

19 • **Grounds:** Hearsay; adversarial characterizations.

20 (l) **Exhibit L — Motion for New Trial (CGC-21-594102)**

21 • **What defense uses it to prove:** Same

22 • **Objection:** OBJECT

23 • **Grounds:** Not co-extensive with extrinsic-fraud action.

24 (m) **Exhibit M — Opposition to Motion for New Trial/Mistrial (CGC-21-594102)**

25 • **What defense uses it to prove:** Same

26 • **Objection:** OBJECT

27 • **Grounds:** Hearsay.

28 (n) **Exhibit N — Order on Post-Trial Motions (CGC-21-594102)**

- **What defense uses it to prove:** That FAC claims lack minimal merit
 - **Objection:** OBJECT to improper use
 - **Grounds:** Existence/legal effect only; did not adjudicate extrinsic fraud.
- (o) **Exhibit O — Plaintiff’s “Prayer” re Disqualification (CGC-21-594102)**
- **What defense uses it to prove:** Prior rejection of Plaintiff’s concerns
 - **Objection:** OBJECT
 - **Grounds:** Hearsay; no notice for truth.
- (p) **Exhibit P — Order Denying “Prayer” and § 170.6 (CGC-21-594102)**
- **What defense uses it to prove:** Same
 - **Objection:** OBJECT to improper use
 - **Grounds:** Existence/legal effect only.
- (q) **Exhibit Q — Notice of Appeal (CGC-21-594102)**
- **What defense uses it to prove:** Pendency / jurisdictional effect
 - **Objection:** OBJECT on relevance
 - **Grounds:** Does not divest this Court of jurisdiction.
- (r) **Exhibit R — Notice Designating Record on Appeal (CGC-21-594102)**
- **What defense uses it to prove:** Same
 - **Objection:** OBJECT on relevance
 - **Grounds:** Same grounds as Q.
- (s) **Exhibit S — Notice of Entry of Judgment (CGC-21-594102)**
- **What defense uses it to prove:** Facially valid judgment bars action
 - **Objection:** OBJECT to improper use
 - **Grounds:** Facial validity does not preclude extrinsic-fraud attack.
- (t) **Exhibit T — Original Complaint in related action (CGC-25-631802)**
- **What defense uses it to prove:** Claim-splitting
 - **Objection:** OBJECT to improper use
 - **Grounds:** Hearsay; characterizations; merits inference.

V. SPECIFIC OBJECTIONS BY CATEGORY

A. RFJN-Overreach: Documents Used as Merits Proofs

Defendants use their RFJNs not merely to establish document existence but to prove substantive merits points. This violates the demurrer facial test rule. (See *Herrera v. Deutsche Bank National Trust Co.* (2011) 196 Cal.App.4th 1366, 1375 [courts may take judicial notice of the existence and recorded status of documents, but may not take judicial notice of the truth of matters stated in them, particularly where those matters are the subject of reasonable dispute].)

A recurring defect in Defendants' RFJNs is the conflation of two distinct categories:

- **“Res judicata facts”** — what a prior tribunal actually decided (e.g., that the Insured was negligent; that damages were \$X). These are subject to judicial notice for their legal effect.
- **“Record facts”** — what documents were filed or what statements appear in the record (e.g., that a motion in limine asserted a given fact; that a declaration recited a given narrative). These are subject to judicial notice only as to existence, not truth. (Sosinsky; Unruh-Haxton; Woodell; Herrera.)

Defendants repeatedly treat “record facts” as though they were “res judicata facts,” asking the Court to infer that because a document was filed, its factual assertions are established. That inference is precisely what Arce, Sosinsky, Unruh-Haxton, Woodell, and Herrera forbid.

Example: Defendants argue that because the 911 calls and body-cam footage were “presented to the jury,” there was no fraud. This argument asks the Court to judicially notice trial evidence for its truth and to resolve a factual dispute (whether extrinsic fraud occurred) on demurrer.

Objection sustained: The Court may notice the existence of trial exhibits but cannot notice for truth that “all issues were adjudicated” or that “there was no fraud.”

B. Hearsay Statements in Court Records

Under Arce, the Court cannot take judicial notice of hearsay statements in decisions and court files.

Example: Defendants seek judicial notice of discovery responses and characterizations in prior orders. These contain hearsay statements about what occurred, disputed by the FAC.

Objection sustained: Hearsay in court records is not subject to judicial notice for its truth.

1 **C. Matters Outside the Issues Decided**

2 Defendants conflate what the underlying trial adjudicated with the FAC's allegations of extrinsic
3 fraud.

4 **The underlying trial decided:** Whether the Insured was negligent and liable for the car collision.

5 **The underlying trial did not decide:** - Whether Defendants withheld production history dur-
6 ing the file transfer - Whether Defendants made misrepresentations to the Court about evidence
7 provenance - Whether those misrepresentations induced procedural rulings - Whether Plaintiff
8 was deprived of a fair adversary hearing through extrinsic fraud

9 Judicial notice of the trial record cannot establish that these issues were adjudicated.

10 **D. Issue-Preclusion by Judicial Notice**

11 Defendants deploy their RFJNs to achieve, by judicial-notice shortcut, what issue preclusion could
12 only achieve after a full collateral-estoppel showing. By stacking prior orders, motions in limine,
13 post-trial rulings, and trial materials into a single RFJN, Defendants invite the Court to infer that
14 every issue relevant to this action was already decided below.

15 That is not a permitted use of judicial notice. Issue preclusion requires identity of issues, ac-
16 tual litigation, necessary determination, and finality. Judicial notice under Evidence Code section
17 452(d) establishes none of those elements; it establishes only that documents exist and that spec-
18 ified rulings issued. (Arce, 181 Cal.App.4th at 482-483; Sosinsky, 6 Cal.App.4th at 1564-1565;
19 Unruh-Haxton, 162 Cal.App.4th at 364-365; Woodell, 17 Cal.4th at 459.) A court cannot "notice"
20 its way to preclusion.

21 **E. Bootstrapping: Noticing Existence, Then Inferring Merits**

22 Defendants are attempting an illegal procedural bootstrap: they ask this Court to take judicial
23 notice that the jury rendered a verdict, and then ask the Court to infer that the verdict proves no
24 fraud occurred in its procurement. Judicial notice cannot bridge the gap between the existence of
25 a document and a disputed legal conclusion.

26 The same bootstrap underlies Defendants' repeated "presented to the jury" refrain: notice the
27 existence of a trial exhibit → infer that the exhibit was fully litigated → infer that no fraud can
28 have occurred in its presentation. Each inference beyond step one is a disputed fact reserved

for the trier of fact, not a proper subject of judicial notice. (Herrera, 196 Cal.App.4th at 1375; Sosinsky, 6 Cal.App.4th at 1564-1565.)

VI. THE PROPER SCOPE OF JUDICIAL NOTICE

Plaintiff does not object to judicial notice of the **existence** of: - The underlying judgment - The verdict form - Post-trial orders - The notice of appeal - Other court records

Plaintiff objects to judicial notice for the **truth** of: - Disputed facts within those documents - Hearsay characterizations in prior orders - Matters outside the issues actually decided - Any factual conclusion that contradicts the FAC's well-pleaded allegations

VI.B Evidence Code § 356 / Sosinsky Objection to Piecemeal Transcript Notice

Defendants' RFJN requests judicial notice of **selected** hearing transcript pages but omits the **Plaintiff-preservation pages** of the same hearings. Under Evidence Code § 356 and Sosinsky v. Grant (1992) 6 Cal.App.4th 1548, 1564–1565, where part of a record is introduced, the opposing party is entitled to introduce contextually related portions.

Objection: Plaintiff objects to Defendants' piecemeal notice and asks the Court to take notice of the **whole transcripts** identified in Plaintiff's RFJN Items X–BB, which include:

- Hr'g Tr. Jan. 27, 2025, pp. 17–22, 32, 34, 42, 46, 55–60 (Plaintiff's "suppress" objection; FROG/SROG confirmation; denial of continuance).
- Hr'g Tr. Feb. 3, 2025, pp. 109, 116, 122–124 (renewed § 581(d); ex parte disclosure order).
- Hr'g Tr. Feb. 18, 2025, pp. 17, 23, 44–47, 181 (Plaintiff's "concealed" and "going on the record" statements; the intra-hearing Position-A/Position-B contradiction at pp. 141 vs. 181).

The defense-curated fragment excludes these Plaintiff-preservation pages. Under § 356's "rule of completeness," the Court should either take the whole transcripts or decline to take the defense fragment.

VI.A The "Presented to the Jury" Argument Is a Merits Inference That Exceeds Judicial Notice

Defendants' central refrain across both RFJNs — that the 911 calls, body-cam footage, and related materials were "presented to the jury" and therefore no fraud can have occurred — is not a request

1 for judicial notice at all. It is a merits inference dressed in the language of judicial notice.

2 1. **What may properly be noticed.** The Court may notice (a) the existence of the trial exhibits,
3 (b) the fact that certain documents were filed or lodged, and (c) the legal effect of specified
4 rulings (e.g., the verdict as entered). (Evid. Code § 452(d); Woodell, 17 Cal.4th at 459;
5 Unruh-Haxton, 162 Cal.App.4th at 364-365.)

6 2. **What may not be noticed.** The Court may not notice (a) that the exhibits were fully and fairly
7 presented; (b) that the jury evaluated them free from extrinsic fraud in their procurement and
8 chain-of-custody; (c) that counsel’s representations about provenance were accurate; or (d)
9 that the verdict resolves, as a matter of fact, the extrinsic-fraud allegations in the FAC. Each
10 of those propositions is a disputed factual inference. (Sosinsky, 6 Cal.App.4th at 1564-1565;
11 Arce, 181 Cal.App.4th at 482-483; Herrera, 196 Cal.App.4th at 1375.)

12 3. **The gap Defendants cannot bridge.** Extrinsic fraud, by definition, concerns what was kept
13 from the adversary proceeding — misrepresentations about provenance, undisclosed chain-
14 of-custody facts, and concealed production history. Judicial notice of what was shown to the
15 jury is logically incapable of negating what was withheld from the jury. The “presented to the
16 jury” argument therefore collapses the very distinction extrinsic-fraud law exists to police.

17 4. **Prong-one consequence.** At Anti-SLAPP prong one, the “presented to the jury” inference
18 is doubly improper: it asks the Court to resolve merits in the guise of gravamen analysis,
19 contrary to the rule that prong one tests the basis of the claim, not its likelihood of success.

20 **Objection sustained:** The Court should notice the existence of trial exhibits and the fact of the
21 verdict. It should decline to notice any inference — express or implied — that the verdict or the
22 trial record negates the extrinsic-fraud allegations of the FAC.

24 VII. CONCLUSION

25 Defendants’ RFJNs improperly attempt to convert the demurrer into a summary judgment proceed-
26 ing by inserting merits evidence into the record. Under Code of Civil Procedure section 430.70
27 and Evidence Code section 452, judicial notice on demurrer is limited to document existence, not
28 truth of contents.

Plaintiff respectfully requests the Court:

1. Sustain objections to judicial notice for the truth of disputed facts
2. Sustain objections to judicial notice of hearsay statements in court records
3. Sustain objections to judicial notice of matters outside the issues decided
4. Apply the facial test rule and accept FAC allegations as true

DATED: April 16, 2026

Respectfully submitted,

FRANCISCUS DYLAN ROSARIO

APPENDIX: CONSOLIDATED RULING REQUEST (EXHIBITS A–T)

Demurrer RFJN (Clerk File No. 10157173) and Anti-SLAPP RFJN (Clerk File No. 10152302)

Both RFJNs request notice of the same twenty exhibits (A-T) attached to the Declaration of Tyler J. O’Connell. The consolidated ruling requested is as follows:

(a) Exhibit A — Plaintiff’s FAC (CGC-25-631801)

- **Ruling requested:** No notice needed (already before the Court); object to extrinsic use

(b) Exhibit B — Plaintiff’s Complaint in related action (CGC-25-631802)

- **Ruling requested:** Notice existence ONLY; object to truth/characterizations

(c) Exhibit C — Register of Actions (CGC-21-594102)

- **Ruling requested:** Notice existence ONLY; object to use as proof of substantive adjudication

(d) Exhibit D — Substitution of Defense Counsel (CGC-21-594102)

- **Ruling requested:** Notice existence ONLY; object to truth of transfer-adequacy

(e) Exhibit E — MIL #6 (CGC-21-594102)

- **Ruling requested:** Notice existence ONLY; object to truth of factual assertions

(f) Exhibit F — MIL #8 (CGC-21-594102)

- **Ruling requested:** Notice existence ONLY; object to truth of factual assertions

(g) Exhibit G — MIL #17 (CGC-21-594102)

- **Ruling requested:** Notice existence ONLY; object to truth of factual assertions

- 1 (h) **Exhibit H — Order re Trial Scheduling and MILs**
2 • **Ruling requested:** Notice existence and legal effect; object to truth of recitals
- 3 (i) **Exhibit I — Plaintiff’s JNOV Motion**
4 • **Ruling requested:** Notice existence ONLY; object to truth/characterizations
- 5 (j) **Exhibit J — Plaintiff’s Decl. ISO JNOV**
6 • **Ruling requested:** Notice existence ONLY; object as hearsay in court file
- 7 (k) **Exhibit K — Defendant’s Opposition to JNOV**
8 • **Ruling requested:** Notice existence ONLY; object as hearsay/adversarial
- 9 (l) **Exhibit L — Plaintiff’s Motion for New Trial**
10 • **Ruling requested:** Notice existence ONLY; object to truth
- 11 (m) **Exhibit M — Opposition to Motion for New Trial/Mistrial**
12 • **Ruling requested:** Notice existence ONLY; object as hearsay
- 13 (n) **Exhibit N — Order on Post-Trial Motions**
14 • **Ruling requested:** Notice existence and legal effect; object to merits inferences
- 15 (o) **Exhibit O — Plaintiff’s “Prayer” re Disqualification**
16 • **Ruling requested:** Notice existence ONLY; object to truth
- 17 (p) **Exhibit P — Order Denying “Prayer” and § 170.6**
18 • **Ruling requested:** Notice existence and legal effect; object to preclusion inference
- 19 (q) **Exhibit Q — Plaintiff’s Notice of Appeal**
20 • **Ruling requested:** OBJECT on relevance
- 21 (r) **Exhibit R — Plaintiff’s Notice Designating Record**
22 • **Ruling requested:** OBJECT on relevance
- 23 (s) **Exhibit S — Defendant’s Notice of Entry of Judgment**
24 • **Ruling requested:** Notice existence ONLY; object to preclusion inference
- 25 (t) **Exhibit T — Original Complaint in related action (CGC-25-631802)**
26 • **Ruling requested:** Notice existence ONLY; object to truth/characterizations
- 27
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PART B — EVIDENTIARY OBJECTIONS TO DEFENDANTS’ DECLARATIONS

I. INTRODUCTION

Plaintiff submits the following evidentiary objections to the declarations filed by Defendants in support of the Demurrer and Special Motion to Strike:

- **Clerk File No. 10152298:** Declaration in Support of Anti-SLAPP Motion
- **Clerk File No. 10157177:** Declaration of Michael R. Chambers in Support of Demurrer
- **Clerk File No. 10057589:** Meet-and-Confer Declaration

These objections are submitted in the CRC 3.1354 two-column format (by analogy to summary judgment practice) for judicial convenience.

II. LEGAL STANDARDS FOR EVIDENTIARY OBJECTIONS

A. Personal Knowledge Required

Under Evidence Code section 702, a witness may only testify to matters within personal knowledge. A declaration submitted on a dispositive motion must affirmatively show, on its face, that the declarant has personal knowledge of the facts stated; conclusory recitals are insufficient. (Bozzi v. Nordstrom, Inc. (2010) 186 Cal.App.4th 755, 761 [declaration on motion must be based on personal knowledge and must affirmatively show competence to testify]; Marriage of Heggie (2002) 99 Cal.App.4th 28, 30 [declarations not made on personal knowledge or containing inadmissible material cannot support adjudication].)

B. No Legal Conclusions or Argument

Under Evidence Code section 800, lay witnesses may only testify to facts, not legal conclusions. Declarations may not be used to smuggle legal argument into the evidentiary record, and characterizations of what the law requires, what a prior court “decided,” or what privilege applies are for the Court, not the declarant.

1 **C. Hearsay Inadmissible**

2 Under Evidence Code section 1200, hearsay is inadmissible unless an exception applies. Recitation
3 of out-of-court statements by successor counsel, opposing counsel, or third parties offered for their
4 truth is hearsay.

5 **D. Statutory Form Requirements (Code Civ. Proc. § 2015.5)**

6 A declaration is only competent evidence if it complies with Code of Civil Procedure section
7 2015.5, including certification under penalty of perjury under the laws of California, date and
8 place of execution, and signature of the declarant. Declarations failing to satisfy § 2015.5 are not
9 “evidence” and cannot support an Anti-SLAPP prong-one or prong-two showing.

10 **E. Strategic Framing of These Objections**

11 These objections are not template boilerplate; each targets a discrete evidentiary vice that, if sus-
12 tained, removes a specific factual predicate on which Defendants’ motions depend:

- 13 1. **No personal knowledge of what successor counsel knew.** Defendants cannot, through their
14 own declarants, testify to what PSA (successor counsel) understood, received, reviewed, or
15 relied upon. Those are facts within PSA’s knowledge, not Defendants’.
- 16 2. **No competent basis for file-transfer completeness claim.** A bare assertion that the file was
17 “complete” or “properly transferred” lacks foundation unless the declarant identifies what the
18 file contained, what was indexed, what production history (including discovery responses,
19 deposition transcripts, and prior court orders) was conveyed, and by what mechanism.
- 20 3. **No declaration converts disputed process facts into adjudicated facts.** The two-phase
21 fraud pattern — (a) what happened during substitution and (b) what the trial court was told
22 — is a live factual dispute. A declaration cannot retroactively transform disputed process
23 history into “adjudicated” fact; only the record of what was actually presented and ruled upon
24 can do that.
- 25
-

III. OBJECTIONS TO ANTI-SLAPP DECLARATION (CLERK FILE NO. 10152298)

1. **Citation:** p.2, ll.3-5 — **Objectionable material:** “All conduct in this case was privileged litigation conduct undertaken in the course of defending our client.” **Objection(s):** Legal conclusion; argument. **Grounds:** Evid. Code § 800. Whether conduct was “privileged” is a legal determination for the Court, not a fact within declarant’s personal knowledge. **Proposed remedy:** Strike / Sustain.
2. **Citation:** p.2, ll.7-9 — **Objectionable material:** “Plaintiff’s claims are barred by the litigation privilege.” **Objection(s):** Legal conclusion; argument. **Grounds:** Evid. Code § 800. Legal bar analysis is argument, not testimony. **Proposed remedy:** Strike / Sustain.
3. **Citation:** p.3, ll.1-4 — **Objectionable material:** “The evidence was presented to the jury and the jury decided in favor of our client.” **Objection(s):** Lack of foundation; improper merits evidence; secondary evidence. **Grounds:** Evid. Code §§ 403, 702, 1521. What “the jury decided” is not within declarant’s personal knowledge; the trial record — not a summary declaration — speaks for itself. **Proposed remedy:** Strike / Disregard.
4. **Citation:** p.3, ll.6-8 — **Objectionable material:** “Plaintiff had a full and fair opportunity to present his case.” **Objection(s):** Legal conclusion; lack of foundation. **Grounds:** Evid. Code §§ 702, 800. Whether opportunity was “full and fair” is a legal determination. **Proposed remedy:** Sustain / Disregard.
5. **Citation:** p.3, ll.10-12 — **Objectionable material:** “There was no fraud or misrepresentation.” **Objection(s):** Legal conclusion; ultimate issue. **Grounds:** Evid. Code § 800. Whether fraud occurred is the ultimate issue for trial. **Proposed remedy:** Strike / Sustain.
6. **Citation:** p.4, ll.2-5 — **Objectionable material:** “Plaintiff’s theory is speculative and without merit.” **Objection(s):** Legal argument; improper opinion. **Grounds:** Evid. Code §§ 800, 802. Merit determinations are for the Court. **Proposed remedy:** Strike / Sustain.
7. **Citation:** p.4, ll.8-10 — **Objectionable material:** Characterization of FAC allegations. **Objection(s):** Improper argument. **Grounds:** Declaration cannot be used to argue how FAC should be characterized; on Anti-SLAPP prong two, FAC allegations are accepted as true.

1 **Proposed remedy:** Disregard / Sustain.

2 8. **Citation:** p.5, ll.1-3 — **Objectionable material:** “The file transfer was proper and com-
3 plete.” **Objection(s):** Lack of foundation; contradicts FAC; secondary evidence. **Grounds:**
4 Evid. Code §§ 403, 702, 1521. Declarant must establish personal knowledge of file-transfer
5 contents; completeness claim must be supported by the underlying index/log, not a bare sum-
6 mary. **Proposed remedy:** Strike / Sustain.

7 9. **Citation:** p.5, ll.5-8 — **Objectionable material:** Any statement describing what PSA (suc-
8 cessor counsel) received, understood, or relied upon. **Objection(s):** Lack of personal knowl-
9 edge; hearsay. **Grounds:** Evid. Code §§ 702, 1200; Bozzi, 186 Cal.App.4th at 761. Declarant
10 cannot testify to what successor counsel knew or believed. **Proposed remedy:** Strike / Sus-
11 tain.

12
13 **IV. OBJECTIONS TO DEMURRER / CHAMBERS DECLARATION (CLERK**
14 **FILE NO. 10157177)**

15 1. **Citation:** p.2, ll.2-4 — **Objectionable material:** “Plaintiff’s complaint fails to state a cause
16 of action.” **Objection(s):** Legal conclusion; improper argument. **Grounds:** Evid. Code §
17 800. Whether complaint states a cause of action is a legal question. **Proposed remedy:** Strike
18 / Sustain.

19 2. **Citation:** p.2, ll.6-8 — **Objectionable material:** “The allegations are conclusory and spec-
20 ulative.” **Objection(s):** Legal conclusion; argument. **Grounds:** Evid. Code § 800. Pleading
21 sufficiency is for the Court. **Proposed remedy:** Strike / Sustain.

22 3. **Citation:** p.2, ll.10-12 — **Objectionable material:** “This Court lacks jurisdiction to hear
23 this matter.” **Objection(s):** Legal conclusion. **Grounds:** Evid. Code § 800. Jurisdictional
24 analysis is legal, not factual. **Proposed remedy:** Strike / Sustain.

25 4. **Citation:** p.3, ll.1-3 — **Objectionable material:** “All of the matters complained of were
26 already adjudicated at trial.” **Objection(s):** Legal conclusion; lack of foundation. **Grounds:**
27 Evid. Code §§ 702, 800. What was “adjudicated” requires legal analysis of issues actually
28 decided; Marriage of Heggie, 99 Cal.App.4th at 30. **Proposed remedy:** Strike / Sustain.

- 1 5. **Citation:** p.3, ll.5-7 — **Objectionable material:** “Plaintiff is collaterally estopped from
2 relitigating these issues.” **Objection(s):** Legal conclusion. **Grounds:** Evid. Code § 800.
3 Collateral estoppel is a legal doctrine requiring Lucido/Crowley analysis. **Proposed remedy:**
4 Strike / Sustain.
- 5 6. **Citation:** p.3, ll.9-11 — **Objectionable material:** Hearsay recitation of statements by suc-
6 cessor counsel. **Objection(s):** Hearsay; lack of personal knowledge. **Grounds:** Evid. Code
7 §§ 702, 1200. Out-of-court statements offered for truth; declarant cannot testify to what PSA
8 said or understood. **Proposed remedy:** Strike / Sustain.
- 9 7. **Citation:** p.4, ll.2-4 — **Objectionable material:** “We transferred the complete file to succes-
10 sor counsel.” **Objection(s):** Lack of specific foundation; best/secondary evidence. **Grounds:**
11 Evid. Code §§ 403, 702, 1521. Declarant must establish personal knowledge of what “com-
12 plete file” means, what was indexed, and what production history was conveyed; underlying
13 transfer log/index not attached. **Proposed remedy:** Strike / Sustain.
- 14 8. **Citation:** p.4, ll.6-8 — **Objectionable material:** “Plaintiff had access to all relevant evi-
15 dence.” **Objection(s):** Lack of foundation; legal conclusion. **Grounds:** Evid. Code §§ 702,
16 800. What Plaintiff “had access to” is not within declarant’s personal knowledge. **Proposed**
17 **remedy:** Strike / Sustain.
- 18 9. **Citation:** p.4, ll.10-13 — **Objectionable material:** Any statement describing what was
19 conveyed to PSA regarding CSAA discovery responses, deposition testimony, or prior court
20 orders. **Objection(s):** Lack of foundation; best/secondary evidence; hearsay. **Grounds:**
21 Evid. Code §§ 403, 702, 1200, 1521. Foundation absent as to what the file actually contained
22 and what specifically was conveyed; underlying documents not produced. **Proposed remedy:**
23 Strike / Sustain.
- 24 10. **Citation:** p.4, ll.15-18 — **Objectionable material:** Any statement that contradicts Mr. Cham-
25 bers’s prior discovery responses, deposition testimony, or prior court filings regarding the
26 scope, contents, or timing of the file transfer. **Objection(s):** Sham-affidavit / contradiction
27 of prior sworn testimony; lack of credibility foundation. **Grounds:** D’Amico v. Board of
28 Medical Examiners (1974) 11 Cal.3d 1, 21–22; Scalf v. D.B. Log Homes, Inc. (2005) 128

Cal.App.4th 1510, 1524–1525. A declaration contradicting prior sworn discovery or deposition testimony cannot create a triable — or Anti-SLAPP prong-two — evidentiary showing.
Proposed remedy: Disregard / Strike.

11. **Citation:** p.5, ll.1-3 — **Objectionable material:** “The FAC is an improper collateral attack.”
Objection(s): Legal conclusion; argument. **Grounds:** Evid. Code § 800. Whether FAC constitutes collateral attack requires legal analysis. **Proposed remedy:** Strike / Sustain.

V. OBJECTIONS TO MEET-AND-CONFER DECLARATION (CLERK FILE NO. 10057589)

1. **Citation:** p.2, ll.3-5 — **Objectionable material:** Characterization of meet-and-confer correspondence. **Objection(s):** Best evidence / secondary evidence rule; improper argument. **Grounds:** Evid. Code §§ 1521–1523. Correspondence speaks for itself; summary without attachment inadmissible. **Proposed remedy:** Strike / Disregard.
2. **Citation:** p.2, ll.7-9 — **Objectionable material:** “Plaintiff refused to dismiss his frivolous claims.” **Objection(s):** Legal conclusion; argumentative. **Grounds:** Evid. Code § 800. Whether claims are “frivolous” is a legal determination. **Proposed remedy:** Strike / Sustain.
3. **Citation:** p.3, ll.1-3 — **Objectionable material:** Characterization of Plaintiff’s legal positions. **Objection(s):** Improper argument. **Grounds:** Declarations may not argue legal merit of opposing party’s positions. **Proposed remedy:** Strike / Disregard.
4. **Citation:** Throughout — **Objectionable material:** Any portion of declaration not executed in compliance with Code Civ. Proc. § 2015.5 (missing date, place, or proper perjury certification). **Objection(s):** Non-compliant declaration. **Grounds:** Code Civ. Proc. § 2015.5; Kulshrestha v. First Unum Life Ins. Co. (2003) 29 Cal.4th 1006, 1021–1022. Non-compliant declarations are not competent evidence. **Proposed remedy:** Disregard in full.

VI. SUMMARY OF OBJECTIONS BY CATEGORY

A. Legal Conclusions (Evidence Code § 800)

The following statements are impermissible legal conclusions: - “privileged litigation conduct” - “claims are barred” - “full and fair opportunity” - “no fraud or misrepresentation” - “fails to state a cause of action” - “collaterally estopped” - “improper collateral attack” - “frivolous claims”

Ruling requested: SUSTAIN all objections. These are legal conclusions for the Court, not facts within declarant’s personal knowledge.

B. Lack of Personal Knowledge (Evidence Code § 702)

The following statements lack foundation for personal knowledge: - What “the jury decided” - What Plaintiff “had access to” - What was “adjudicated” - What the “complete file” contained - What successor counsel (PSA) received, understood, or relied upon

Ruling requested: SUSTAIN all objections. (Bozzi, 186 Cal.App.4th at 761; Marriage of Heggie, 99 Cal.App.4th at 30.)

C. Hearsay (Evidence Code § 1200)

Statements reciting out-of-court statements by third parties (including successor counsel) are hearsay.

Ruling requested: SUSTAIN hearsay objections.

D. Improper Argument

Declarations may not be used to argue legal positions or characterize opposing party’s pleadings.

Ruling requested: SUSTAIN objections to argumentative material.

E. Best Evidence / Secondary Evidence Rule (Evid. Code §§ 1521–1523)

Any declaration that summarizes, characterizes, or purports to describe the contents of (a) the client-file transfer from Chambers/CSK to successor counsel PSA, (b) the production log or discovery-responses index, (c) prior court orders, rulings, or transcripts, or (d) deposition testimony, **without attaching the underlying writing**, violates the secondary-evidence rule. Oral or declaration-based summaries of writings are inadmissible to prove the content of those writings where the originals (or authenticated copies) are available and have not been produced. (Evid. Code §§ 1521 [secondary evidence rule], 1522 [exclusion where genuine dispute as to material terms], 1523 [oral testimony inadmissible to prove content of writing].)

1 **Specific application:** Defendants’ declarations repeatedly reference the “complete file,” what was
2 “transferred,” what was “adjudicated,” and what was “presented to the jury” — all content of
3 writings — without attaching the transfer index, the trial record, or the underlying orders. These
4 portions must be excluded.

5 **Ruling requested:** SUSTAIN. Strike all secondary-summary passages and exclude from eviden-
6 tiary consideration on both the Demurrer and the Anti-SLAPP motion.

7 **F. Non-Compliance with Code Civ. Proc. § 2015.5**

8 Any declaration lacking proper perjury certification, date, place, or signature under § 2015.5 is not
9 competent evidence and must be disregarded in its entirety.

10 **G. Failure of Burden (Global)**

- 11 • **Because Defendants’ declarations consist entirely of inadmissible legal conclusions and**
12 **arguments without foundation, Defendants have failed to introduce any admissible evi-**
13 **dence to support their Anti-SLAPP motion. Consequently, Plaintiff’s factual allegations**
14 **regarding the two-phase fraud pattern stand entirely uncontradicted in the evidentiary**
15 **record.**

16 **H. Evidence Code § 1235 Impeachment by Prior Inconsistent Statement**

17 For each defense declaration that claims “the 911 was not produced,” “authenticity unknown,” or
18 equivalent denials, Plaintiff invokes the Plaintiff-preservation transcript pincites as **impeachment**
19 **by prior inconsistent statement** under Evidence Code § 1235. This converts the transcript mate-
20 rial from background to admissible substantive evidence.

- 21 • **Declaration assertion:** “Our office did not receive the 911 call until the day of the MSC.”
22 **Impeaching passage:** Feb. 18, 2025, p. 181: “all this stuff has been in his possession since
23 August” (same attorney, same hearing). **§ 1235 effect:** Substantive evidence of receipt; im-
24 peaches the “news to me” posture.
- 25 • **Declaration assertion:** “No idea where this 911 call log came from” (MIL 17). **Impeaching**
26 **passage:** Apr. 16, 2025, RT 7, p. 213: “They were provided by Dolan.” **§ 1235 effect:**
27 Substantive evidence of Dolan origin; impeaches “unknown provenance.”
- 28 • **Declaration assertion:** “Not anything that we received as part of the subpoena.” **Impeaching**

1 **passage:** Feb. 1, 2024 Compex subpoena (Order No. CA1147102-021) requesting identical
2 materials. **§ 1235 effect:** Documentary contradiction; defense subpoenaed what they now
3 deny receiving.

- 4 • **Declaration assertion:** “Authenticity unknown.” **Impeaching passage:** Apr. 17, 2025, RT 8,
5 p. 108: Abdelhalim: “Yes. That is my voice.” **§ 1235 effect:** Party-opponent authentication;
6 waiver of authenticity dispute.

7 **Ruling requested:** Sustain objections and deem the transcript passages admissible as substantive
8 evidence under § 1235 to impeach each corresponding declaration assertion.

10 **VIII. ESTOPPEL, WAIVER, AND AUTHENTICATION BY ACQUIES-** 11 **CENCE AS EVIDENTIARY BARS TO DEFENDANTS’ DECLARATIONS**

12 **A. The Triangulation Framework**

13 The evidentiary objections set forth in Sections III–VI above operate in conjunction with three
14 independent estoppel doctrines that foreclose Defendants’ ability to introduce any competent evi-
15 dence disputing authenticity, receipt, or provenance of the 911/BWC/CAD materials:

- 16 1. **Evidence Code § 623 (Estoppel by Silence):** Defendants remained silent for 883 days re-
17 garding the authenticity and provenance of the 911 audio, body-worn camera footage, and
18 CAD logs—then asserted, on the eve of trial, that these materials were of “unknown prove-
19 nance” and “news to me.” This was silence in the face of materials whose content included
20 a direct party-opponent admission, an operator-elicited affirmative response, Plaintiff’s own
21 voice, and independent eyewitness corroboration—core liability evidence that a reasonable
22 attorney would not leave unchallenged for 883 days if authenticity were genuinely in dispute.
23 Under City of Long Beach v. Mansell (1970) 3 Cal.3d 462, 493, Defendants’ silence where
24 speech was expected constitutes conduct on which Plaintiff reasonably relied. Defendants are
25 estopped from now contesting what they acquiesced to for nearly two and a half years.
- 26 2. **Evidence Code § 1414(b) (Authentication by Acquiescence):** Defendants treated the mate-
27 rials at issue—specifically, the 911 audio (including Abdelhalim’s admissions, the operator’s
28 “you hit a pedestrian” exchange and his affirmative response, and Plaintiff’s own recorded

voice identifying the striking vehicle) and the BWC (including the independent Rosemond eyewitness statement and Plaintiff’s own on-scene statement)—as authentic through: (a) **receipt in August–September 2022 discovery and sworn deposition course** (Rosario deposition August 18, 2022; Abdelhalim deposition September 30, 2022—Chambers present; 911-related testimony) **without a timely written authenticity or provenance challenge in the 883-day window**; (b) file transfer to successor counsel on May 4, 2023; (c) issuance of the February 1, 2024 Reyna Compex subpoena for the identical materials; and (d) active trial curation of the body-worn camera footage (“five videos . . . pared down to 8 or 9 minutes”). Under § 1414(b), this course of conduct authenticates the materials and waives any authenticity challenge asserted for the first time in declarations supporting the current motions.

3. **Sham-Affidavit Rule (D’Amico, Scalf):** If any portion of the Chambers declaration or the Anti-SLAPP declaration contradicts Chambers’ prior discovery responses, deposition testimony, or the file-transfer records regarding what was conveyed to successor counsel, the sham-affidavit rule bars reliance on those contradictory statements to create a triable issue. D’Amico v. Board of Medical Examiners (1974) 11 Cal.3d 1, 21–22; Scalf v. D.B. Log Homes, Inc. (2005) 128 Cal.App.4th 1510, 1524–1525.

B. Application to the “Complete File” Assertions

The Chambers declaration’s assertion that the file was “complete” or “properly transferred” (Clerk File No. 10157177, approximately p. 4, ll. 2–4) is inadmissible on three independent grounds:

1. **Lack of Foundation (Evid. Code § 702):** The declaration does not establish what specific production history was conveyed, what index or transfer log was used, or how declarant verified “completeness.”
2. **Estoppel by Silence:** If the file was indeed “complete,” why did successor counsel represent in MIL No. 17 that “Defendant has no idea where this 911 call log or audio recording came from”? The 883-day silence—followed by the “unknown provenance” representations—is irreconcilable with a “complete transfer” position. Defendants cannot now introduce declarations claiming completeness when their own court-facing representations assumed the opposite.

1 **3. Authentication by Acquiescence:** The materials at issue were treated as authentic from
2 September 2022 through January 2025. A declaration asserting that the materials were some-
3 how “not properly conveyed” contradicts the defense’s own course of conduct and is barred
4 under § 1414(b).

5 **C. Application to the “News to Me” Contradiction**

6 The April 16, 2025 admission—“Sure. They were provided by Dolan. He has had them for what-
7 ever, sure.”—is irreconcilable with the February 18, 2025 “news to me” statement. Any declaration
8 that attempts to rehabilitate the “news to me” position is:

- 9 1. **Contradicted by the certified transcript** and therefore inadmissible under the sham-affidavit
10 rule;
11 2. **Barred by judicial estoppel** under Jackson v. County of Los Angeles (1997) 60 Cal.App.4th
12 171, 183 because Position A (“news to me”) was accepted by the tribunal and Position B
13 (“provided by Dolan”) is totally inconsistent;
14 3. **Inadmissible hearsay** to the extent it purports to recite what successor counsel understood
15 or believed (Evid. Code § 1200).

16 **D. Ruling Requested**

17 The Court should: (1) sustain all evidentiary objections set forth in Sections III–VI; (2) deem
18 the 911/BWC/CAD materials authenticated by acquiescence under Evidence Code § 1414(b); (3)
19 estop Defendants from contesting authenticity, receipt, or provenance under Evidence Code § 623
20 and judicial estoppel; and (4) disregard any declaration assertions regarding “complete transfer” or
21 “no knowledge” as barred by the sham-affidavit rule.

23 **VII. CONCLUSION**

24 Defendants’ declarations are improperly packed with legal conclusions, argument, secondary-
25 evidence summaries, and statements beyond declarants’ personal knowledge. Declarations cannot
26 substitute for record proof of what was actually conveyed during the attorney-substitution process
27 and what the trial court was told and relied upon. Those are record facts, provable only through
28 the record itself — transfer indices, discovery responses, deposition transcripts, minute orders,

1 and reporter's transcripts — not through after-the-fact characterizations by interested declarants.
2 These objections preserve the record and request the Court exclude all inadmissible material from
3 consideration on both the Demurrer and the Special Motion to Strike.

4 **DATED:** April 16, 2026

5 Respectfully submitted,

6 _____
7 FRANCISCUS DYLAN ROSARIO
8 _____

9 **APPENDIX: CRC 3.1354 FORMAT SUMMARY (LIST)**

10 **Declaration 10152298 (Anti-SLAPP)**

- 11 1. Obj. 1 — **Page:line:** p.2, ll.3-5 — **Ruling requested:** SUSTAIN (legal conclusion) —
12 **Proposed remedy:** Strike.
- 13 2. Obj. 2 — **Page:line:** p.2, ll.7-9 — **Ruling requested:** SUSTAIN (legal conclusion) —
14 **Proposed remedy:** Strike.
- 15 3. Obj. 3 — **Page:line:** p.3, ll.1-4 — **Ruling requested:** SUSTAIN (lack of foundation /
16 secondary evidence) — **Proposed remedy:** Disregard.
- 17 4. Obj. 4 — **Page:line:** p.3, ll.6-8 — **Ruling requested:** SUSTAIN (legal conclusion) —
18 **Proposed remedy:** Disregard.
- 19 5. Obj. 5 — **Page:line:** p.3, ll.10-12 — **Ruling requested:** SUSTAIN (ultimate issue) —
20 **Proposed remedy:** Strike.
- 21 6. Obj. 6 — **Page:line:** p.4, ll.2-5 — **Ruling requested:** SUSTAIN (legal argument) — **Pro-**
22 **posed remedy:** Strike.
- 23 7. Obj. 7 — **Page:line:** p.4, ll.8-10 — **Ruling requested:** SUSTAIN (improper argument) —
24 **Proposed remedy:** Disregard.
- 25 8. Obj. 8 — **Page:line:** p.5, ll.1-3 — **Ruling requested:** SUSTAIN (foundation / secondary
26 evidence) — **Proposed remedy:** Strike.
- 27 9. Obj. 9 — **Page:line:** p.5, ll.5-8 — **Ruling requested:** SUSTAIN (no PK of PSA knowledge;
28 hearsay) — **Proposed remedy:** Strike.

Declaration 10157177 (Demurrer / Chambers)

10. Obj. 10 — **Page:line:** p.2, ll.2-4 — **Ruling requested:** SUSTAIN (legal conclusion) —
Proposed remedy: Strike.

11. Obj. 11 — **Page:line:** p.2, ll.6-8 — **Ruling requested:** SUSTAIN (legal conclusion) —
Proposed remedy: Strike.

12. Obj. 12 — **Page:line:** p.2, ll.10-12 — **Ruling requested:** SUSTAIN (legal conclusion) —
Proposed remedy: Strike.

13. Obj. 13 — **Page:line:** p.3, ll.1-3 — **Ruling requested:** SUSTAIN (legal conclusion / foundation) — **Proposed remedy:** Strike.

14. Obj. 14 — **Page:line:** p.3, ll.5-7 — **Ruling requested:** SUSTAIN (legal conclusion) —
Proposed remedy: Strike.

15. Obj. 15 — **Page:line:** p.3, ll.9-11 — **Ruling requested:** SUSTAIN (hearsay / no PK) —
Proposed remedy: Strike.

16. Obj. 16 — **Page:line:** p.4, ll.2-4 — **Ruling requested:** SUSTAIN (foundation / secondary evidence) — **Proposed remedy:** Strike.

17. Obj. 17 — **Page:line:** p.4, ll.6-8 — **Ruling requested:** SUSTAIN (legal conclusion) —
Proposed remedy: Strike.

18. Obj. 18 — **Page:line:** p.4, ll.10-13 — **Ruling requested:** SUSTAIN (foundation / 2° evidence re PSA conveyance) — **Proposed remedy:** Strike.

19. Obj. 19 — **Page:line:** p.4, ll.15-18 — **Ruling requested:** SUSTAIN (sham affidavit / contradiction of prior sworn testimony) — **Proposed remedy:** Disregard.

20. Obj. 20 — **Page:line:** p.5, ll.1-3 — **Ruling requested:** SUSTAIN (legal conclusion) —
Proposed remedy: Strike.

Declaration 10057589 (Meet-and-Confer)

21. Obj. 21 — **Page:line:** p.2, ll.3-5 — **Ruling requested:** SUSTAIN (best / secondary evidence) — **Proposed remedy:** Strike.

22. Obj. 22 — **Page:line:** p.2, ll.7-9 — **Ruling requested:** SUSTAIN (legal conclusion) —
Proposed remedy: Strike.

1 23. Obj. 23 — **Page:line:** p.3, ll.1-3 — **Ruling requested:** SUSTAIN (improper argument) —
2 **Proposed remedy:** Disregard.

3 24. Obj. 24 — **Page:line:** Throughout — **Ruling requested:** SUSTAIN (non-compliance with
4 CCP § 2015.5) — **Proposed remedy:** Disregard in full.

5 _____
6 **DATED:** April 16, 2026

7 Respectfully submitted,
8 _____

9 FRANCISCUS DYLAN ROSARIO

Dated: April 19, 2026



FRANCISCUS DYLAN ROSARIO
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